

asserts that sanctions under CCP § 1992 should be awarded. However, said sanctions can only be obtained by filing an independent civil action. (*New York Times Co. v. Superior Court* (1990) 51 Cal.3d 453, 464.)

Motion for Order Compelling Firdous Jamal Abbasi to Produce His 2014 Toyota Prius is MOOT.

Request for Sanctions DENIED.

Case Management Conference continued to 7.22.26, Plaintiff's counsel ordered to file new and updated Case Management Statement 10 days in advance of hearing regarding status of Discovery/ Alternative Dispute Resolution/ compliance of CRC 3.724 & LR 3218. Failure to do so will result in sanctions. Defendant is not ordered to submit an updated Case Management statement.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2504351	MCDONALD, AN INDIVIDUAL, VS WALTER FAMILY PARTNERSHIP	MOTION TO BE RELIEVED AS COUNSEL AS TO ELIZABETH MCDONALD, AN INDIVIDUAL

Tentative Ruling:

Motion to be Relieved as Counsel for Elizabeth McDonald GRANTED.

Attorneys D. Aaron Brock and Brigid O'Reilly are relieved as counsel of record for Plaintiff, effective upon the filing of the proof of service of the signed court order upon the client.

Trial Setting Conference is confirmed for 7.09.26, and an OSC re status of representation for Plaintiff Elizabeth McDonald shall be set for the same date.

The court notes there are three discovery motions by Defendant scheduled for 8.07.26. For now, that date shall remain, with the understanding that date will likely be modified following the TSC/OSC on 7.09.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2507742	BERRY VS DIETERLE	MOTION TO SET ASIDE DEFAULT JUDGMENT ON 1ST AMENDED COMPLAINT OF BERRY DAWSON BY DAVID DIETERLE, JACQUELINE DIETERLE, WILLIAM L. DIETERLE, TRUSTEE OF THE DIETERLE FAMILY TRUST

Tentative Ruling: An application for mandatory relief based on an attorney affidavit of fault must be made "no more than six months after entry of judgment." (C.C.P. §473(b).) Unlike the excusable neglect provisions, there need be no showing of diligence in seeking relief short of the six-month time limit. (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1488.) The six-month period starts with entry of the default

judgment, not the default. (*Sugasawara v. Newland* (1994) 27 Cal.App.4th 294, 297.) The application for relief “shall be accompanied by a copy of the answer or other pleading proposed to be filed ... otherwise the application shall not be granted.” (C.C.P. § 473(b).)

Relief must be granted even where the default resulted from inexcusable neglect by defendant's attorney, “so long as the attorney affidavit of fault shows the error was the fault of the attorney rather than the client.” (*Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 57.) An admission of fault that does not include an explanation of the reason for the fault may still be sufficient (*Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 442-443), but because the court may deny relief if it finds the default or dismissal “was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect” (*Jimenez*, 97 Cal.App.5th 50, 57), the explanation of the reasons “can serve as a causation testing device” in determining whether the neglect was caused by the client or the attorney. (*Martin Potts & Associates*, 244 Cal.App.4th 432, 442 [internal quotation marks omitted].)

When relief is granted based on an attorney affidavit of fault, sanctions of reasonable compensatory legal fees and cost” to the opposing counsel or parties are mandatory. [C.C.P. §473(b).] The court may also impose sanctions against the culpable attorney of monetary sanctions up to \$1,000 to opposing parties, \$1,000 to the State Bar Client Security Fund, or “other relief as is appropriate.” (C.C.P. §473(c)(1)(A), (B) and (C).)

Here, the court notes that in his affidavit, the Defendant’s attorney admits fault in failing to file a timely answer due to attempts to obtain better copies of what he described as illegible documents. Upon learning of the default, actions were taken to have the default set aside within less than two months. Defendant has attached a copy of the proposed answer and cross-complaint to the motion to set aside default.

Motion to Set Aside and Vacate Default GRANTED.

Defendants’ Answer and Cross-Complaint shall be deemed filed as of the date of this order.

Sanctions in the amount of \$250 shall be paid to Plaintiff within 30 days.

The Order to Show Cause re default judgment is vacated. A Case Management Conference is set for 10.07.26, 8:30 a.m.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2507790	BUCKMAN VS VILLASENOR PEREZ	DEMURRER ON 1ST AMENDED COMPLAINT FOR FRAUD OF SHIRIN BUCKMAN BY AURORA VILLASENOR PEREZ

Tentative Ruling: No opposition filed by Plaintiff.

Request for Judicial Notice GRANTED. The court takes judicial notice of the following:

1. Plaintiff Shirin Buckman’s 2nd Amended Complaint in CVPS 2400148
2. Motion for Leave to file 3rd Amended Complaint in CVPS 2400148